

GINSBURG, J., dissenting

Second, early American courts regarded with disfavor the prospect of successive prosecutions by the Federal and State Governments. In *Houston v. Moore*, 5 Wheat. 1 (1820), Justice Washington expressed concern that such prosecutions would be “very much like oppression, if not worse”; he noted that an acquittal or conviction by one sovereign “might be pleaded in bar of the prosecution before the other.” *Id.*, at 23, 31. The Court today follows *Bartkus* in distinguishing Justice Washington’s opinion as addressing only the “strange” situation in which a State has prosecuted an offense “against the United States.” *Ante*, at 705; see *Bartkus*, 359 U. S., at 130. The distinction is thin, given the encompassing language in Justice Washington’s opinion. Justice Story’s dissent, moreover, declared successive prosecutions for the same offense contrary to “the principles of the common law, and the genius of our free government.” *Houston*, 5 Wheat., at 72.

Most of the early state decisions cited by the parties regarded successive federal-state prosecutions as unacceptable. See *Bartkus*, 359 U. S., at 158–159 (Black, J., dissenting). Only one court roundly endorsed a separate-sovereigns theory. *Hendrick v. Commonwealth*, 32 Va. 707, 713 (1834). The Court reads the state-court opinions as “distinguishing] between believing successive prosecutions by separate sovereigns unjust and holding them unlawful.” *Ante*, at 703. I would not read the Double Jeopardy Clause to tolerate “unjust” prosecutions and believe early American courts would have questioned the Court’s distinction. See *State v. Brown*, 2 N. C. 100, 101 (1794) (allowing successive prosecutions would be “against natural justice, and therefore I cannot believe it to be law”).

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531 U. S. 510, 521 (2001). Moreover, a “compelling” principle of statutory interpretation is “the proposition that Congress does not intend *sub silentio* to enact statutory language that it has earlier discarded in favor of other language.” *INS v. Cardoza-Fonseca*, 480 U. S. 421, 442–443 (1987) (internal quotation marks omitted).